

RESOLUTION NO. _____**ENTITLED: “A RESOLUTION PERMITTING THE POSSESSION OF OPEN CONTAINERS WITHIN THE DOWNTOWN DISTRICT BOUNDARIES FOR THE “TALES & ALES” PUB CRAWL TO BE HELD ON APRIL 2, 2022.”**

WHEREAS, the City of Cheyenne Governing Body has amended Section 5.12.110 of the Municipal Code to allow for the possession of open containers within the downtown district boundaries between the Thursday preceding Memorial Day to the Monday of Labor Day of each calendar year; however, the periods of time, as well as the boundaries of special areas or districts, may be established and/or modified by resolution adopted by the Governing Body; and

WHEREAS, the Cheyenne Downtown Development Authority (DDA) requests the possession of open containers within the boundaries of the Downtown Development Authority (DDA) district be permitted for the purpose of hosting the “Tales & Ales” Pub Crawl to be held on Saturday, April 2, 2022, from 3:00 p.m. to 10:00 p.m.; and

WHEREAS, shopping locally creates a multiplier effect through direct, indirect, and induced spending which boosts the local economy and creates more local wealth and jobs; and

WHEREAS, a number of studies illustrated on the website of American Independence Business Alliance (AMIBA) have shown a 48% return to the community occurs when you spend locally; and

WHEREAS, the event organizers will comply with any and all laws, rules, and regulations to ensure the safety of the community; and

WHEREAS, adherence to the following requirements are required for participation by alcohol vendors and consumers when open containers are permitted as designated herein:

1. The only containers for alcoholic beverages in the special district downtown area’s public spaces, for the day specified herein, are plastic cups. Glass containers are strictly prohibited.
2. No outside alcoholic beverage, wine, or malt liquor may be brought into or consumed within the open container area; a violation of this provision is a violation of the City’s open container prohibition and potentially other state or local statutes or codes.
3. Nothing herein shall be interpreted as authorizing the possession of open containers of alcoholic liquor or malt beverages in or on motor vehicles.

NOW, THEREFORE, BE IT RESOLVED BY THE GOVERNING BODY OF THE CITY OF CHEYENNE, WYOMING, the possession of open containers within the boundaries of the Downtown Development Authority (DDA) district is permitted for the purpose of hosting the “Tales & Ales” Pub Crawl on Saturday, April 2, 2022, during the dates and times designated herein.

PRESENTED, READ, AND ADOPTED this _____ day of _____, 2022.

Patrick Collins, Mayor

(SEAL)
Attest:

Kristina F. Jones, City Clerk